



September 5th 2017 Delaware County Commissioners Meeting

Meeting Metadata	Details
Video Recording	https://www.youtube.com/watch?v=Y5OXY-qYilk
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Delaware County Commissioners Meeting Report

Meeting Date: September 5, 2017

Location: Delaware County, Indiana

2. Meeting Identification & Attendance

- **Call to Order & Spoken Details:** Presiding officer called the Delaware County Commissioners meeting to order at [00:00:08](#) on Tuesday, September 5, 2017.
- **Attendance:**
 - **Present:** Mr. Henry, Mr. Riggin, Mr. King (Presiding)
 - **Absent:** Mr. Craig ([00:00:58](#))
 - **Presiding Officer:** Mr. King

3. Preliminary & Procedural Business

- **Ceremonial Openings:** The meeting opened with the Pledge of Allegiance ([00:00:15](#)). Early in the meeting, the board recognized Nate Jones (Veterans Administrator) along with Ray Wahby, Brandon Jefferson, EMA Assistant Director John Patino, and paramedic Kollege Culbertson for traveling to southern Louisiana and Texas to assist with flood relief efforts ([00:01:11](#)).

- **Approval of Minutes:** Minutes from the August 21, 2017 meeting were approved (00:04:37).
 - **Action & Vote Disposition:** Passed Unanimously by Voice Vote (00:04:48).
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4. Substantive Business & Board Action

- **00:02:40 Resolution 2017-034: Final Determination of Tax Sale / Property Transfer**
 - **Sponsor / Presenter:** Board of Commissioners / County Staff.
 - **Deliberation Summary:** Discussion regarding the final determination of a tax sale assigned to a nonprofit corporation, specifically transferring property at 4221 East Jackson to Ashbury 14 Creek. Prior contractor liens were delinquent.
 - **Item-Specific Public Input:** None recorded.
 - **Action & Vote Disposition:** Taken off table and approved. Passed Unanimously by Voice Vote (00:04:24).
- **00:04:28 Agreement for Collection of Personal Property**
 - **Sponsor / Presenter:** Board of Commissioners.
 - **Deliberation Summary:** The board agreed to keep this item tabled until the next meeting (00:04:32).
 - **Action & Vote Disposition:** Tabled by Voice Vote.
- **00:04:55 Presentation: Jail and Correctional Campus Concept (Garmong Development & DLZ)**
 - **Sponsor / Presenter:** Mr. Turner (Garmong Development), Sheriff Delaware (Sheriff Dudley), Eric Kratz (DLZ), Kenny Winters & Chance (Indiana Department of Corrections).
 - **Deliberation Summary:** A comprehensive presentation was delivered regarding the critical state of the Delaware County Jail (built in 1992 for 110 beds, currently housing over 250 in-house and over 500 total when factoring in pretrial probation and home detention). Presenters highlighted state standards, severe overcrowding, lack of segregation/classification space, soaring opiate/drug-related incarcerations, and escalating maintenance costs (\$120k for hinges, \$200k for servers).
 - Garmong and DLZ proposed a conceptual project utilizing an existing 200,000-square-foot shell building with a 50x50 column span and 32-foot clear span. The design incorporates modular steel cells (built off-site and craned into place), a 496-rated bed capacity expandable to the north, non-secure perimeter maintenance chases, 3-tier cell stacking, centralized pod supervision, and potential future integration of judicial courts and emergency management. Financing options discussed included private installment purchase financing (similar to Vigo County) or a special jail/local income tax.
 - **Item-Specific Public Input:** General discussion among commissioners and presenters regarding the political challenges of building a jail, utility efficiencies, and land options.

- **Action & Vote Disposition:** Informational presentation; no binding vote taken on construction, though a subsequent procedural motion to work with Garmong was approved later in the meeting.
- **01:21:25 Memorandum of Understanding: Fund Distribution**
 - **Sponsor / Presenter:** County administration / Attorney Bob Richmond.
 - **Deliberation Summary:** Discussion regarding a memo of understanding regarding incoming funds. It was noted that funds should be directed back into County General rather than attempting to split them directly among Highway, DCC, and the Board of Health due to accounting complexities.
 - **Action & Vote Disposition:** Approved by Voice Vote.
- **01:34:00 2018 Holiday Schedule**
 - **Sponsor / Presenter:** Board of Commissioners.
 - **Deliberation Summary:** Review and approval of the county holiday schedule for 2018.
 - **Action & Vote Disposition:** Approved Unanimously by Voice Vote (**01:33:43**).
- **01:34:54 Ordinance 2017-019: Reestablishing CASA Donation Fund**
 - **Sponsor / Presenter:** Board of Commissioners.
 - **Deliberation Summary:** Second reading of an ordinance reestablishing the CASA donation fund, which already exists but lacked an active original record for ongoing use.
 - **Action & Vote Disposition:** Approved Unanimously by Voice Vote (**01:34:30**).
- **01:25:23 UAW Local 2321 (EMS) Grievance Decision**
 - **Sponsor / Presenter:** Board of Commissioners / Attorney Bob Richmond.
 - **Deliberation Summary:** Formal reading and ruling on a grievance submitted by UAW Local 2321 (misidentified initially in the record as 1348) regarding overtime distribution for employee Julie Cline. The board found that the employee failed to provide required overtime request copies to all shift supervisors per contract past practice, making the employer not responsible for the missed opportunities. The grievance was formally denied.
 - **Action & Vote Disposition:** Approved findings and denial of grievance with union local number correction. Passed Unanimously by Voice Vote (**01:29:14**).
- **01:32:55 Payment of Claims**
 - **Sponsor / Presenter:** Board of Commissioners.
 - **Deliberation Summary:** Presentation of claims totaling \$1,613,577.43.
 - **Action & Vote Disposition:** Approved Unanimously by Voice Vote (**01:33:09**).

5. Open Public Comment / Citizen Forum

- **01:30:39 Melanie Marshall (Delaware County Recorder):** Announced that the recorder's office is updating its public search software for land records. The software

vendor from Iowa will conduct on-site training sessions on Thursday, September 14, in the morning and afternoon. Details will be advertised publicly.

- **01:31:39 County Council Representative:** Spoke in support of the Garmong jail presentation, noting the Council's openness to private/alternative financing and departmental appropriations tracking for revenue generation.
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6. Administrative Updates & Adjournment

- **Staff / Board Announcements:**
 - At **01:33:17**, the board placed a telephone check-in call to Nate Jones and the Delaware County flood relief team stationed in Louisiana. Jones reported they had gutted 5 homes, were assisting widows and displaced residents, and noted that storage totes and winter coats were high-demand donation items for families displaced for 6 to 8 months.
 - Commissioners noted they would review the Garmong jail presentation further and visit a modular cell sample.
 - **Adjournment:** The meeting concluded following the phone update with the flood relief team (**01:39:05**).
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